OFFICE LEASE AGREEMENT

This OFFICE LEASE AGREEMENT (this "Lease") is made and entered into by and between BUBBA CENTER PARTNERSHIP ("Landlord"), and Truetone Lane LLC, a Delaware limited liability company ("Tenant").

ARTICLE I
BASIC LEASE TERMS

Commencement Date:	April 24 , 2020
Landlord Address:	1600 Bubba Road, Suite 111, Fort Worth, Texas 76109
Tenant Address:	285 Outer Loop, Suite 900, Georgetown, Texas 78626
Address of Premises:	1600 Bubba Road, Suite 111, Fort Worth, Texas 76109
Building:	17,044 square feet
Building Rentable Area:	17,044 square feet
Premises Footage:	5,340
Lease Term:	5 years from the Commencement Date, as may be extended
Option to Extend:	Two (2) Three (3) year options to extend the Lease Term
Monthly Base Rent:	$9,998.00 (initially based on $22.00 per Premises Footage on an annual basis, as increased from time to time on an annual basis as provided in Section 2.02)
Annual Base Rent:	$116,806.00, as increased from time to time on an annual basis as provided in Section 2.02)
Additional Rent:	Tenant's Share of Taxes, Insurance Expenses and Common Area Costs set forth in Section 2.03 below
Security Deposit:	$9,998.00
Tenant's Share:	25.5% (Premises Footage divided by total Building Rentable Area)
Approved Use:	Retail Consumer Electronics

ARTICLE II
LEASE TERM AND RENT

2.01 Term. (a) Subject to and upon the conditions set forth herein, the Lease Term shall commence on the Commencement Date and terminate on the last day of the Lease Term (the "Termination Date"). The Premises are leased to Tenant in an AS IS, WHERE IS, AND WITH ALL FAULTS condition and without warranty of any kind, except as may be otherwise expressly provided in this Lease.

(b) If Tenant desires to exercise an Option to Extend, Tenant shall deliver written notice to Landlord at least six (6) months prior to the expiration of the Lease Term informing Landlord that it will renew this Lease. If Tenant elects to renew this Lease and Tenant is not in default hereunder, this Lease shall continue in full force and effect during such renewal Lease Term.

2.02 Monthly Base Rent. (a) During the Lease Term, Tenant agrees to pay to Landlord the Monthly Base Rent at the address as shown above on the first day of each month. If the Commencement Date should be a date other than the first day of a calendar month, the Monthly Base Rent shall be pro-rated to the end of that calendar month, and all succeeding installments of Monthly Base Rent shall be payable on or before the first day of each succeeding calendar month during the Lease Term. Commencing on the first annual anniversary of the Commencement Date and continuing on each annual anniversary thereafter during the Lease Term (including any renewal Lease Term), the Annual Base Rent shall increase by two percent (2%) over the prior year's Annual Base Rent.

(b) On the date of execution of this Lease by Tenant, Tenant shall deliver to Landlord the Security Deposit to be held for the performance by Tenant of Tenant's covenants and obligations under this Lease; provided, however, it is expressly understood that the Security Deposit shall not be considered an advance payment of Monthly Base Rent or a measure of Landlord's damages in case of default by Tenant. Upon the occurrence of any event of default by Tenant under this Lease, Landlord may, from time to time, without prejudice to any other remedy, use the Security Deposit to the extent necessary to make good any arrears of Monthly Base Rent and/or any damage, injury, expense or liability caused to Landlord by the event of default by Tenant, and any remaining balance of the Security Deposit shall be returned by Landlord to Tenant upon termination of the Lease.

(c) In addition to other remedies for non-payment of Monthly Base Rent as provided herein, if Monthly Base Rent or other payment due Landlord is not received by Landlord on or before the seventh (7th) day of the due date thereof, a service charge of eight percent (8%) of such past due amount shall become due and payable in addition to such amounts owed under this Lease.

2.03 Additional Rent.

(a) Taxes. For purposes of this Lease, the term "Taxes" will mean and include all taxes, assessments, water and sewer rents and other governmental impositions, levies and charges of every kind and nature whatsoever, general and special, ordinary and extraordinary, foreseen and unforeseen, and each and every installment thereof, which will or may during the Lease Term, be levied, assessed or imposed against, or become due and payable or a lien upon, or arise in connection with the use, occupancy or possession of, or grow due and payable out of, or for, the Building (including all land thereunder) wherein the Premises are located or any part thereof, or any land, buildings or other improvements therein, excluding, however, any franchise, estate, inheritance, gift, succession, capital levy, transfer, income or excess profits taxes imposed upon Landlord. Tenant will pay to Landlord in monthly installments, on the same dates as and in addition to the Monthly Base Rent and other charges prescribed in this Lease, an amount equal to one-twelfth (1/12th) of Tenant's Share of Taxes, as estimated by Landlord in good faith from time to time for the anticipated amount of Taxes. As soon as practicable after the close of each calendar year during the Lease Term, Landlord will furnish a statement in writing to Tenant specifying the actual amount due by Tenant in respect of Tenant's Share of Taxes. In the event the total of the monthly payments theretofore made by Tenant under this Section for such year exceeds the actual amount due, then the excess will be applied pro rata as a credit on the monthly installments thereafter coming due under this Section. In the event the total of the monthly payments theretofore made by Tenant under this Section for such year is less than the actual amount due, any such deficiency will be due and payable by Tenant to Landlord within forty-five (45) days after Tenant's receipt of such statement. During any year that will be less than a full tax year, Tenant's Share of Taxes will be prorated on a daily basis between the parties to the end that Tenant will only pay for Taxes attributable to the portion of the tax year occurring within the Lease Term.

(b) Insurance. For purposes of this Lease, the term "Insurance Expenses" will mean and include the premiums, deductibles, and other charges incurred in connection with all insurance policies maintained by Landlord, from time to time, for or with respect to the Building or any part thereof (includingall land thereunder), or any land, buildings or other improvements therein, including, without limitation, fire and extended coverage, public liability, property damage, boiler, rental loss and other insurance in formand amount deemed reasonably necessary by Landlord. In addition to the Monthly Base Rent, Tenant willpay to Landlord in monthly installments, on the same dates as and in addition to the monthly rentals and other charges prescribed in this Lease, an amount equal to one-twelfth (1/12th) of Tenant's Share of Insurance Expenses, as estimated by Landlord in good faith from time to time for the anticipated amount of Insurance Expenses. As soon as practicable after the close of each calendar year during the Lease Term,Landlord will furnish a statement in writing to Tenant specifying the actual amount due by Tenant in respectof Tenant's Share of Insurance Expenses. In the event the total of the monthly payments theretofore madeby Tenant under this Section for such year exceeds the actual amount due, then the excess will be applied pro rata as a credit on the monthly installments thereafter coming due under this Section. In the event the total of the monthly payments theretofore made by Tenant under this Section for such year is less than theactual amount due, any such deficiency will be due and payable by Tenant to Landlord within forty-five (45) days after Tenant's receipt of such statement. During any part of the Lease Term which will be less than a full policy year, Tenant's Share of Insurance Expenses will be prorated on a daily basis between the parties to the end that Tenant will only pay for Insurance Expenses attributable to the portion of the policy year occurring within the Lease Term.

(c) Common Areas. For purposes of this Lease, the term "Common Area" means that part of the Building designated by Landlord, from time to time, for the common use of all tenants, including among other facilities (as such may be applicable to the Building or real property lot where the Building is located), parking areas, private streets and alleys, landscaping, curbs, loading areas, sidewalks, vestibules or promenades (enclosed or otherwise), lighting facilities, drinking fountains, hallways, meeting rooms, public toilets, and the like, but excluding space (now or hereafter existing) designated for rental for commercial purposes, as the same may exist from time to time. Landlord reserves the right to change from time to time the dimensions and location of the Common Area, as well as the dimensions, identities, locations and types of any improvements, signs or other improvements in the Building. In addition to rent and other charges prescribed in this Lease, Tenant will pay to Landlord Tenant's Share of Common Area Costs, plus a management fee equal to five percent (5%) of the gross revenue payable under this Lease. The term "Common Area Costs", as used herein, means all costs and expenses of every kind and nature as may be paid or incurred by Landlord during the Lease Term in operating, managing, equipping, lighting, repairing, replacing and maintaining the Common Area, including, without limitation, costs of resurfacing and restriping the parking area; repainting, cleaning, sweeping, snow and ice removal, and other janitorial services; purchase, construction, and maintenance of refuse receptacles, planting and re-landscaping; directional signs and other markers; car stops; lighting and other utilities; maintenance, repair and replacement of the ceiling or roof above any Common Area; maintenance, repair and replacement of utility systems, including water, sanitary and storm sewer lines and other utility lines, pipes and conduits; drainage systems serving the Building; rental charges for machinery and equipment used in operation, maintenance and repair of the Common Area; installing, operating and maintaining Building identification signs; costs of personnel to implement all of the foregoing, including wages, unemployment taxes and social security taxes; personal property taxes; fees for required licenses and permits; supplies; and operation of loudspeakers and any other equipment supplying music to the Common Area; and payments under any recorded declaration encumbering any part of the Building. Landlord may cause any or all of said services to be provided by a third-party contractor or contractors (which may be an affiliate of Landlord).

Notwithstanding the foregoing to the contrary, Common Area Costs shall not include: (a) the cost of any capital improvements to the Building and the cost of any alterations, modifications or improvements made by Landlord to the Building to comply with applicable laws; (b) depreciation; (c) Structural Repairs (as defined below); (d) the cost of repairs or other work to the extent Landlord is reimbursed by insurance or condemnation proceeds or any other tenants in the Building; (e) costs in connection with leasing space

in the Building; (f) lease concessions, rental abatements and construction allowances granted to specific tenants; (g) costs incurred in connection with the sale, financing or refinancing of the Building; (h) fines, interest and penalties incurred due to the late payment of Taxes or Common Area Costs by Landlord; (i) organizational expenses associated with the creation and operation of the entity which constitutes Landlord; (j) any penalties or damages that Landlord pays to Tenant under this Lease or to other tenants in the Building under their respective leases; (k) real estate brokers' leasing commissions; (l) costs of other services or work performed for the singular benefit of another tenant or occupant (other than for Common Areas of the Building); (m) rental under any ground lease; (n) reserves of any kind; (o) the cost of any repair made by Landlord because of the total or partial destruction of the Building or the condemnation of a portion of the Building; (p) costs incurred to remove or otherwise deal with any hazardous materials found in, upon or under the land in violation of environmental laws; (q) the costs for the acquisition of sculpture, paintings or other objects of art utilized on the land or in the Building; (r) any costs that would otherwise be included within Common Area Costs that are paid for directly by or charged separately to Tenant or any other tenants in the Building; and (s) all costs and expenses directly resulting from the gross negligence or willful misconduct of Landlord or its employees, agents or contractors.

In addition to the Monthly Base Rent, Tenant will pay to Landlord in monthly installments, on the same dates as and in addition to the Monthly Base Rent and other charges prescribed in this Lease, an amount equal to one-twelfth (1/12th) of Tenant's Share of Common Area Costs, as estimated by Landlord in good faith from time to time for the anticipated amount of Common Area Costs. As soon as practicable after the close of each calendar year during the Lease Term, Landlord will furnish a statement in writing to Tenant specifying the actual amount due by Tenant in respect of Tenant's Share of Common Area Costs. In the event the total of the monthly payments theretofore made by Tenant under this Section for such year exceeds the actual amount due, then the excess will be applied pro rata as a credit on the monthly installments thereafter coming due under this Section. In the event the total of the monthly payments theretofore made by Tenant under this Section for such year is less than the actual amount due, any such deficiency will be due and payable by Tenant to Landlord within forty-five (45) days after Tenant's receipt of such statement. During any part of the Lease Term which will be less than a full policy year, Tenant's Share of Common Area Costs will be prorated on a daily basis between the parties to the end that Tenant will only pay for Common Area Costs attributable to the portion of the policy year occurring within the Lease Term.

(d) Additional Rent. Wherever it is provided in this Lease that Tenant is required to make any payment to Landlord in addition to Monthly Base Rent, such payment will be deemed to be additional rent and all remedies applicable to the non-payment of Monthly Base Rent will be applicable thereto. During the Lease Term, Tenant agrees to pay to Landlord the Additional Rent at the address as shown above on the first day of each month or as otherwise required herein. Monthly Base Rent and Additional Rent is collectively referred to herein as "Rent".

(e) Audit. Tenant shall have the right to audit, inspect, and copy the books and records of Landlord with respect to any Common Area Costs payable by Tenant. Landlord shall cooperate with Tenant in providing Tenant reasonable access to its books and records during normal business hours for this purpose. If the results of the audit show an overstatement of Tenant's Share of Common Area Costs by more than five percent (5%) of the actual amount owed by Tenant, then Landlord shall pay the reasonable, documented, out of pocket cost of such audit. If the audit indicates an overpayment by Tenant, then Tenant shall be entitled to either (i) receive a refund from Landlord within forty-five (45) days after receipt of such audit. If the audit indicates an underpayment by Tenant, Tenant shall pay Landlord the amount of any such underpayment within forty-five (45) days after receipt of such audit.

ARTICLE III
USE AND CARE OF PREMISES

3.01 Purpose. The Premises shall be used and occupied only for the Approved Use and for no other purposes without the prior written consent of Landlord. Tenant shall not at any time leave the Premises vacant, but shall in good faith continuously throughout the Lease Term conduct and carry on in the Premises the Approved Use.

3.02 Usage and Insurance. (a) Tenant shall not, without Landlord's prior written consent, keep anything within the Premises or use the Premises for any purpose which increases the insurance premium cost or invalidates any insurance policy carried on the Premises. All property kept, stored or maintained within the Premises by Tenant shall be at Tenant's sole risk.

(b) To the extent Tenant uses the Premises as a medical or dental office, Tenant shall be responsible for storage and removal of all biomedical waste and chemicals used in or generated by the operation of its business and shall comply with all laws and regulations in effect at the time governing suchwastes and chemicals. Tenant warrants to Landlord that all such medical waste and other hazardous materials will be disposed of in a manner to satisfy all regulatory authorities. Landlord gives its advance consent to the presence of such materials in and on the Premises and agrees that Tenant's use, production and storage of such materials shall not render Tenant in default under this Lease, provided that Tenant disposes of such materials as provided herein.

3.03 Care. Tenant shall (a) keep the Premises in good and clean condition, (b) take good care of the Premises and (c) keep Premises free from waste at all times. Tenant shall keep the Premises (including windows) neat, clean, and free from dirt or rubbish at all times, and shall store all trash and garbage within the Premises, or in a dumpster, or such other reasonable manner as may be directed by Landlord. Tenant shall occupy the Premises, conduct its business and control its agents, employees, contractors, customers and invitees in such a manner as is lawful, and will not create any nuisance or otherwise interfere with, annoy or disturb any other tenant in its normal business operations or Landlord in its management of the Building.

3.04 Compliance With Law. Tenant, at its sole cost and expense, shall comply with all laws, ordinances, and regulations applicable to the Premises, except that Tenant shall not be obligated to make any structural changes or alterations to the Premises unless made necessary by the act or omission of the Tenant, in which event Tenant, at its expense, shall comply with plans and specifications approved by Landlord.

3.05 Surrender. At the expiration of this Lease, Tenant shall surrender the Premises in good condition, reasonable wear and tear, loss by fire, or other unavoidable casualty, alone excepted, provided that Tenant and Landlord do not execute a new lease for the Premises.

ARTICLE IV
MAINTENANCE AND REPAIR OF PREMISES

4.01 Services. Tenant shall be responsible, at Tenant's sole cost and expense, for providing janitorial, window cleaning, pest control, maintenance and security monitoring services (if desired by Tenant) to the Premises.

4.02 Structural Repairs. Landlord shall be responsible, at Landlord's expense, for all maintenance and repairs ("Structural Repairs") to the foundation, roof and exterior walls of the Premises, unless such Structural Repairs are made necessary because of the negligence or willful misconduct of Tenant, in which event Tenant shall pay and be responsible, at Tenant's expense, for any necessary Structural Repairs.

4.03 Other Repairs and Maintenance. Tenant shall pay and be responsible, at Tenant's expense, for all other repairs to the Premises not considered Structural Repairs, and Tenant shall pay and be

responsible for repairing and maintaining (but not replacing) the doors, windows, lighting, heating, air conditioning, plumbing, electrical and mechanical systems, and other elements serving the Premises. Except in case of emergency, all maintenance, repairs, alterations, additions, or improvements shall be conducted only by contractors and subcontractors approved in writing by Landlord; provided that Tenant shall procure and maintain, and shall cause such contractors and subcontractors engaged by or on behalf ofTenant, to procure and maintain, insurance coverage against such risks, in such amounts and with such companies as Landlord may reasonably require in connection with any such maintenance, repair, alteration,addition, or improvement.

ARTICLE V
ALTERATIONS AND FIXTURES

5.01 Alterations and Fixtures. Tenant shall not make any alterations, additions or improvements to the Premises without the prior written consent of Landlord except for the installation of unattached movable trade fixtures ("Trade Fixtures"). All alterations, additions, improvements, and fixtures, other than Trade Fixtures, that may be made or installed by either party on the Premises shall become the property of Landlord at the termination of this Lease, and at the termination of this Lease shall remain on and be surrendered with the Premises. Any linoleum, carpeting, or other floor covering of similar character that may be cemented or otherwise affixed to the floor of the Premises, and any paneling or other wall covering, shall also become the property of Landlord, all without credit or compensation to Tenant.

5.02 Liens. Tenant shall not permit any lien or obligation to be charged against or imposed on the Premises by reason of any alteration, repair, labor performed, or materials furnished to the Premises for or on behalf of Tenant, and Tenant will discharge any such lien or charge immediately after the lien attaches or the charge becomes due and payable.

ARTICLE VI
SIGNAGE

6.01 Signage. Tenant may place or attach to the Premises signs (digital or otherwise) or other such identification as needed after receiving written permission from the Landlord, which permission shallnot be unreasonably withheld. Any damage caused to the Premises by the Tenant’s erecting or removing such signs shall be repaired promptly by the Tenant at the Tenant’s expense. Any signs or other form of identification allowed must conform to all applicable laws, ordinances, etc. governing the same. Tenant also agrees to have any window or glass identification completely removed and cleaned at its expense promptly upon vacating the Premises.

ARTICLE VII
UTILITIES

7.01 Tenant's Responsibility. In addition to water, sewer, gas and other utilities paid as Common Area Costs, Tenant shall promptly pay all other charges for electricity, gas, telephone service, and other utilities furnished to the Premises. In that regard, Tenant shall maintain such utilities in Tenant's name and shall make payment directly to the applicable utility providers. Landlord shall maintain an account for water service to the Building including the Premises and shall pay the cost of such water service unless such water service is separately metered to the Premises, in which event Tenant shall pay for such water directly to the provider.

7.02 Landlord Not Liable. Landlord shall not be liable for any interruption or impairment in utility services unless the interruption or impairment is solely caused by the gross negligence or willful misconduct of Landlord or Landlord's agents or employees. Under no circumstances shall Landlord be liable for any indirect or consequential damages caused by any interruption of utility services provided to the Building or Premises.

ARTICLE VIII
INSURANCE AND INDEMNITY

8.01 Real Property. Landlord shall be responsible for any and all policies of fire and extended coverage insurance on the Building (including all land thereunder), and shall cause such policies to be maintained in force during the Lease Term in an amount equal to ninety percent (90%) of the full replacement value of the Building.

8.02 Personal Property. Tenant shall be responsible for insuring all personal property on the Premises and shall be required to insure all such personal property for its full insurable value at all times.

8.03 Liability Insurance. Tenant shall procure and maintain throughout the Lease Term a policy or policies of insurance, at Tenant's sole cost and expense, insuring Tenant from claims, demands, or actions arising out of Tenant's use and occupancy of the Premises. The property damage insurance shall have limits of liability of not less than One Million and No/100 Dollars ($1,000,000.00), and the public liability insurance shall have limits of liability of not less than Two Million and No/100 Dollars ($2,000,000.00) for injury to or death of one person and Five Million Dollars ($5,000,000.00) for injury to or death of more than one person in any one accident. Landlord shall be named as an additional insured on such policies, and Tenant shall exercise its best efforts to cause Landlord to have the right under such policies to notification within thirty (30) days prior to cancellation of any such policies. Within three (3) days after the execution hereof, Tenant shall deliver to Landlord a copy of such policies described above.

8.04 Waiver of Claims and Subrogation. Tenant waives all claims against Landlord or Landlord's insurer (collectively, "Landlord Parties") for damage to Tenant's tangible property, loss of income, loss of use, and any actual, incidental, or consequential damages resulting from any act or omission of any one or more Landlord Parties, and Tenant will cause its insurers to waive any and all rights of subrogation against Landlord Parties. Landlord waives all claims against Tenant or Tenant's insurer (collectively, "Tenant Parties") for damage to Landlord's tangible property, loss of income, loss of use, and any actual incidental or consequential damages resulting from any act or omission of any one or more Tenant Parties, and Landlord will cause its insurers to waive any and all rights of subrogation against Tenant Parties.

ARTICLE IX
NON-LIABILITY FOR DAMAGES

9.01 Non-Liability of Landlord. LANDLORD SHALL NOT BE LIABLE TO TENANT OR TO ANY OTHER PERSON ON THE PREMISES FOR ANY LOSS OR DAMAGE UNLESS SUCH LOSS OR DAMAGE IS CAUSED SOLELY BY THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF LANDLORD OR LANDLORD'S AGENTS OR EMPLOYEES. IN THAT REGARD, TENANT SHALL INDEMNIFY, DEFEND AND HOLD LANDLORD HARMLESS FROM ALL FINES, SUITS, COSTS AND LIABILITY OF EVERY KIND, INCLUDING WITHOUT LIMITATION, REASONABLE ATTORNEY FEES AND COSTS IN DEFENSE OF ANY CLAIM RELATING THERETO, ARISING BECAUSE OF: (I) ANY VIOLATION OR NONPERFORMANCE BY TENANT OF ANY REPRESENTATION OR COVENANT CONTAINED IN THIS LEASE; (II) ANY BODILY INJURY, DEATH AND/OR DAMAGE TO PROPERTY OCCURRING IN OR RESULTING FROM ANY OCCURRENCE IN THE PREMISES DURING THE LEASE TERM; AND
(III) ANY BODILY INJURY, DEATH AND/OR PROPERTY DAMAGE THAT IN INCIDENT TO, ARISES OUT OF, OR IS CAUSED BY THE ACTS OR OMISSIONS OF TENANT OR ANY OF ITS

AGENTS, EMPLOYEES, CONTRACTORS, CUSTOMERS OR INVITEES AND WHICH ARE NOT THE RESULT OF LANDLORD'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT. The provisions of this Section shall survive the termination of this Lease.

ARTICLE X
ACCESS TO PREMISES

10.01 Landlord's Right to Access. If Tenant has not notified Landlord of its intent to renew the Lease or has otherwise indicated that Tenant will not renew the Lease after sending a notice of intent to renew, Landlord shall have the right to enter upon the Premises at all reasonable hours and upon at least 24 hours' advance notice for the purpose of inspection and within the last six months of the term of the Lease for showing to potential tenants. Landlord shall not be liable to Tenant for any expense, loss, or damage caused solely by any such entry on the Premises unless such loss or damage is caused by the gross negligence or willful misconduct of Landlord or Landlord's agents or employees. Landlord shall use reasonable efforts to not disturb Tenant's business.

ARTICLE XI
DAMAGE BY CASUALTY

11.01 Notice. Tenant shall give immediate written notice to Landlord of any damage caused to the Premises by fire or other casualty.

11.02 Repair. (a) In the event that the Premises will be damaged or destroyed by fire or other casualty insurable under standard fire and extended coverage insurance and Landlord does not elect to terminate this Lease as hereinafter provided, Landlord will proceed with reasonable diligence and at its sole cost and expense to rebuild and repair the Premises within one hundred eighty (180) days of the date of casualty. In the event (i) the Building in which the Premises are located will be destroyed or substantially damaged by a casualty not covered by Landlord's insurance, or (ii) such Building will be destroyed or rendered untenantable to an extent in excess of fifty percent (50%) of the first floor area by a casualty covered by Landlord's insurance, or (iii) any mortgagee elects, pursuant to the terms of its mortgage, to require the use of all or part of Landlord's insurance proceeds in satisfaction of all or part of the indebtedness secured by the mortgage, then in any such eventuality Landlord may elect either to terminate this Lease or to proceed to rebuild and repair the Premises. Landlord will give written notice to Tenant of such election within forty-five (45) days after the occurrence of such casualty, and if it elects to rebuild and repair will proceed to do so within one hundred eighty (180) days of the date of casualty and at its sole cost and expense.

(b) Landlord's obligation to rebuild and repair under this Article XI will in any event be limitedto restoring the Premises, exclusive of any alterations, additions, improvements, fixtures and equipment installed by Tenant, to substantially the same condition existing prior to the casualty, as the case may be. Tenant agrees, promptly after completion of such work by Landlord, to proceed with reasonable diligence and at Tenant's sole cost and expense to restore, repair and replace all alterations, additions, improvements, fixtures, signs and equipment installed by Tenant and promptly reopen for business in the Premises.

11.03 Continuation of Business. (a) Tenant agrees that during any period of reconstruction or repair of the Premises it will continue the operation of its business within the Premises to the extent practicable, in Tenant's sole discretion. During the period from the occurrence of the casualty until Landlord's repairs are completed, Rent shall abate in the same proportion as the untenantable portion of the Premises bears to the whole thereof.

(b) No damage or destruction to the Premises will allow Tenant to surrender possession of the Premises or affect Tenant's liability for the payment of rent or any other covenant herein contained, except

as may be specifically provided in this Lease. Landlord will not be obligated to commence any repair, restoration or rebuilding until insurance proceeds are received by Landlord, and Landlord's obligations hereunder will be limited to the proceeds received by Landlord under its insurance policy. In the event the Premises will be damaged, in whole or in substantial part, within the last twelve (12) months of the term of this Lease, or any extension or renewal thereof, Landlord will have the option, exercisable within thirty (30) days following such damage, of terminating this Lease, effective as of the date of mailing notice thereof.

11.04 Interest in Insurance Proceeds. Any insurance against casualty loss which may be carried by either Landlord or Tenant shall be under the sole control of the party carrying the insurance, and the other party shall have no interest in any proceeds of that insurance.

ARTICLE XII
EMINENT DOMAIN

12.01 Taking of Premises. If more than thirty percent (25%) of the floor area of the Premises should be taken for any public or quasi public use under any law, ordinance, or regulation or by right of eminent domain or by private purchase in lieu thereof, then it is agreed that at the option of either party to this Lease, this Lease shall be canceled as of the date of the taking, and both parties shall be relieved of all obligations imposed by this Lease. It is expressly understood and agreed that the Tenant shall have no claim against the Landlord as a result of any such involuntary conversion, whether brought about by suit or agreement, for the cancellation of the Lease or for Tenant's leasehold interest.

12.02 Continuation of Business. If less than thirty (30%) percent of the floor area of the Premises should be taken as aforesaid, this Lease will not terminate; however, the Rent and other charges payable hereunder during the unexpired portion of this Lease will be reduced in proportion to the area taken, effective on the date physical possession is taken by the condemning authority, and Landlord shall proceed to make all necessary repairs to the Premises in order to render and restore the same to the condition they were in prior to the taking.

12.03 Compensation. All compensation awarded for any taking (or the proceeds of a private sale in lieu thereof) of the Premises or Tenant's leasehold interest therein will belong to and be the property of Landlord, whether such damages are awarded as compensation for the diminution in value to the leasehold or to the fee of the Premises, and Tenant assigns its interest in any such award to Landlord. Landlord will have no interest in any separate award made to Tenant for Tenant's moving and relocation expenses or for the loss of Tenant's fixtures and other tangible personal property which Tenant would be entitled to remove from the Premises at the expiration of the Lease Term, provided no such separate award to Tenant will in any way diminish the award made or to be made to Landlord.

ARTICLE XIII
ASSIGNMENT AND SUBLETTING

13.01 No Assignment or Sublease. Tenant shall not assign or in any manner transfer this Lease or any estate or interest in this Lease or sublet the Premises (or any part of the Premises) without the prior written consent of Landlord. Consent by Landlord to one or more assignments or subletting shall not operate as a waiver of Landlord's rights as to any subsequent assignments and subletting. Notwithstanding any assignment or subletting, Tenant shall at all times remain fully responsible and liable for the payment of the Rent specified in this Lease and for compliance with all of its other obligations under this Lease.

13.02 Assignment. In the event of the transfer and assignment by Landlord of its interest in this Lease and in the Building containing the Premises to a person, firm, or corporation assuming Landlord's obligations under this Lease, Landlord shall be released from any further obligations under this Lease. Tenant agrees to look solely to the responsibility of the successor in interest of the Landlord. Any Security

Deposit given by Tenant to secure performance of its obligations under this Lease shall be assigned and transferred by Landlord to a successor in interest of Landlord and Landlord shall thereby be discharged of any further obligation for the Security Deposit.

13.02 Permitted Assignments/Subleases. Notwithstanding any provision in this Lease to the contrary, so long as Tenant is not in default beyond applicable notice and cure periods at the time, Tenant may, without Landlord's consent, but with ten (10) days' notice, assign this Lease or sublet the Premises to any entity to which Tenant sells or assigns some or all or the equity interests in Tenant or all or substantially all of the assets of Tenant or of its operating affiliate, or to any entity in connection with a financing transaction involving Tenant. The sale or transfer of equity interests in Tenant and/or any subtenant subleasing in accordance with the terms of this Lease shall not constitute an assignment under the terms of this Lease. Further notwithstanding any provision of this Lease to the contrary, Tenant is granting to Scott Law Ortho Corp, P.C. a Texas professional corporation (the "Sublessee"), the right to use, sublease and/or occupy the Premises as necessary to operate a professional dental and orthodontics practice pursuant to its Management Services Agreement with Tenant, and Landlord hereby consents to such grant of rights to such Sublessee. Landlord also consents to a future grant by Tenant of a sublease to any other entity that may be a party to a Management Services Agreement with Tenant and who acknowledges this Lease.

ARTICLE XIV
TAXES

14.01 Real Property Taxes. Subject to Tenant's obligation to pay to Landlord amounts for Taxes as provided herein, Landlord shall ensure that all real property taxes levied against the Premises are paid to the appropriate taxing authorities prior to the delinquency thereof.

14.02 Personal Property Taxes. Tenant shall be liable for all taxes levied against personal property and trade fixtures placed by Tenant upon the Premises. If any such taxes for which Tenant is liable are levied against Landlord, Landlord's Building or other property, or the Premises, and if Landlord elects to pay them, or if the assessed value of Landlord's Building or property is increased by inclusion of personal property and trade fixtures placed by Tenant in the Premises and Landlord elects to pay the taxes based on that increase, Tenant shall pay to Landlord on demand that part of the taxes attributable to Tenant's personal property and trade fixtures.

ARTICLE XV
EVENTS OF DEFAULT AND REMEDIES

15.01 Default. The following events shall be deemed to be events of default by Tenant under this Lease:

(a) Failure of Tenant to pay when due any installment of Rent or any other sums or charges due under this Lease and such failure shall continue for a period of ten (10) days after written notice thereof to Tenant; provided, however, that Landlord shall be required to give such notice only on (1) time per calendar year, and thereafter Tenant will be in default for failure to pay any amount it is obligated to pay hereunder within ten (10) days after such payment is due;

(b) Failure of Tenant to comply with any term, provision, or covenant of this Lease, other than the payment of Rent, and failure to cure that breach within thirty (30) days after written notice of the breach to Tenant (unless such breach cannot reasonably be cured within thirty (30) days, in which case Tenant shall have additional time to cure the breach so long as Tenant is diligently prosecuting such cure).

(c) Insolvency of Tenant, a transfer by Tenant in fraud of creditors, or assignment by Tenant for the benefit of creditors;

(d) Commencement by or against Tenant or guarantor of Tenant's obligations under this Lease of proceedings in bankruptcy, or for reorganization of Tenant, or for the re-adjustment of arrangement of Tenant's debts, whether under the Bankruptcy Act of the United States of America or under any other law, whether State or Federal, now or hereafter existing for the relief of debtors, or commencement of any analogous statutory or non-statutory proceeding involving Tenant; or the commencement of any such proceedings against Tenant, where such proceedings are not dismissed within thirty (30) days of filing. The acceptance by Landlord of Tenant's Rent and other charges as provided in this Lease subsequent to the occurrence of any such event of default shall be as compensation for use and occupancy of the Premises, and shall in no way constitute a waiver by Landlord of its right to exercise any of the remedies provided herein on the occurrence of any event of default;

(e) Appointment of a receiver or trustee for substantially all of Tenant's assets where such receivership or trusteeship is not terminated within thirty (30) days of such appointment; or

(f) Tenant abandons any substantial portion of the Premises or cessation of the use of the Premises for the Approved Use.

15.02 Remedies. On the occurrence of any of such events of default by Tenant, Landlord shall have the option to pursue any one or more of the following remedies without any notice or demand whatsoever:

(a) Terminate this Lease, in which event Tenant shall immediately surrender the Premises to Landlord. If Tenant fails to surrender the Premises, Landlord may, without prejudice to any other remedy which it may have for possession or arrearages in Rent, enter upon and take possession of the Premises by changing locks if necessary, and lock out, expel or remove Tenant and any other person who may be occupying all or any part of the Premises without being liable for prosecution of any claim for damages. Upon the termination of this Lease, in addition to all unpaid Rent and other monetary obligations of Tenant to Landlord, Landlord will be entitled to recover, not as Rent or a penalty but as compensation for Landlord's loss of the benefit of its bargain with Tenant, the difference between (i) an amount equal to the present value of the Rent and other sums that this Lease provides Tenant will pay for the remainder of the term hereof, and for the balance of any then effective extension of the term hereof, and (ii) the present value of the net future Rent for such period that will be or with reasonable efforts could be collected by Landlord by reletting the Premises. The foregoing present values will be calculated by discounting at the rate of 8% per annum. For purposes of determining what could be collected by Landlord by reletting under the preceding sentence, it will be assumed that Landlord is not required to relet when other comparable space in the Building is available for lease and the Landlord will not be required to incur any cost to relet, other than customary leasing commissions.

(b) Enter upon and take possession of the Premises, by changing locks if necessary, and lock out, expel or remove Tenant and any other person who may be occupying all or any part of the Premises without being liable for any claim for damages, and without causing a trespass, without being liable for any claim for damages, and without causing a termination of or forfeiture of this Lease of Tenant's obligation to pay Rent and any other charges, and may relet the Premises on behalf of Tenant and receive directly the Rent by reason of the reletting, but the failure to so relet shall not reduce Tenant's liability for Rents and other charges for damages. Tenant agrees to pay Landlord on demand any deficiency that may arise by reason of reletting of the Premises; further, Tenant agrees to reimburse Landlord for any expenditures made by it for remodeling or repairing in order to relet the Premises. In connection with any such reletting, Landlord will not be obligated to incur any cost to relet, other than customary leasing commissions, will not be obligated to relet for less than the then market value of the Premises or to relet the Premises when other comparable rental space in the Building is available for lease, and may relet the Premises for a term to expire at the same time as, earlier than, or subsequent to, the expiration of the term hereof and/or relet all or any portion of the Premises as a part of a larger area. Landlord may retain the excess, if any, of the Rent earned from reletting the Premises over the Rent specified in this Lease.

(c) Enter upon the Premises, by changing locks if necessary, without being liable for prosecution of any claim for damages, and do whatever Tenant is obligated to do under the terms of this Lease. Tenant agrees to reimburse Landlord on demand for all expenses which Landlord may incur in effecting compliance with Tenant's obligations under this Lease; further, Tenant agrees that Landlord shall not be liable for any damages resulting to Tenant from effecting compliance with Tenant's obligations under this subparagraph caused by the negligence of Landlord or otherwise.

(d) After an event of default by Tenant, Landlord may recover from Tenant from time to time and Tenant shall pay to Landlord upon demand, whether or not Landlord has relet the Premises or terminated this Lease, (i) such reasonable expenses as Landlord may incur in recovering possession of the Premises, terminating this Lease, placing the Premises in good order and condition and altering or repairing the same for reletting; (ii) all other reasonable costs and expenses (including brokerage commissions and legal fees) paid or incurred by Landlord in exercising any remedy or as a result of the event of default by Tenant; and (iii) any other reasonable amount necessary to compensate Landlord for all the detriment caused by Tenant's failure to perform Tenant's obligations under this Lease or which in the ordinary courseof things would be likely to result from Tenant's failure to perform in accordance with this Lease.

ARTICLE XVI

Intentionally Deleted.

ARTICLE XVII
SUBORDINATION

17.01 Subordination. This Lease is subject and subordinate to any deed of trust or other lien which may now or hereafter encumber the Premises and to all renewals, modifications, consolidations, replacements, and extensions of any such deed of trust or lien. This clause shall be self-operative and no further instrument of subordination need be required by any mortgagee. In confirmation of this subordination, however, Tenant shall, at Landlord's request, execute promptly any appropriate certificate or instrument that Landlord may reasonably request, provided that any beneficiary under the deed of trust or other lien for which the subordination is required agrees not to disturb Tenant's occupancy of the Premises so long as no event of default has occurred and is continuing under this Lease. In the event of the enforcement by the trustee or the beneficiary under any such mortgage or deed of trust of the remedies provided for by law or by the deed of trust, Tenant will, upon request of any person or parties succeeding to the interest of Landlord as a result of such enforcement, automatically become the Tenant of the successor in interest without change in the terms or other provisions of this Lease.

ARTICLE XVIII
MISCELLANEOUS

18.01 Covenant of Quiet Environment. Landlord covenants and agrees that, on payment by Tenant of the Rent and all other sums provided for in this Lease, and on the observance and performance of all of the covenants and agreements on the Tenant's part to be observed and performed, Tenant shall, subject to the terms and provisions of this Lease, at all times during the continuance of this Lease have the peaceable and quiet enjoyment and possession of the Premises.

18.02 Relationship of the Parties. Nothing contained in this Lease shall be deemed or construed by the parties, or by any third party, as creating the relationship of principal and agent or of partnership or of joint venture between the parties, it being understood and agreed that neither the method of computation

of Rent, nor any other provision contained in this Lease, nor any acts of the parties, shall be deemed to create any relationship between the parties other than the relationship of Landlord and Tenant.

18.03 No Brokers. Tenant warrants that it has had no dealings with any broker or agent in connection with the negotiation or execution of this Lease and Tenant agrees to indemnify, defend and hold Landlord harmless from and against any and all costs, expense, or liability for commissions or other compensations and charges claimed by any broker or agent with respect to this Lease.

18.04 Interest on Past-Due Amounts. Should Tenant fail to pay when due, including any grace period, any installment of Rent or any other sum payable to the Landlord under the terms of this Lease, interest at the lower of (1) 12% per annum or (2) the maximum legal rate then payable by Tenant in the State of Texas shall accrue from and after the date on which any such installment or sum shall be due and payable, and the interest shall be paid by Tenant to Landlord as Additional Rent at the time of payment of the sum on which the interest shall have accrued.

18.05 Limitation of Landlord Liability. Under no circumstances whatsoever will Landlord ever be liable hereunder for consequential or special damages. All liability of Landlord to Tenant for any breach or default by Landlord under the terms and provisions of this Lease will be recoverable solely from the proceeds of sale on execution of the interest of Landlord in the Premises; it being expressly stipulated and agreed that Landlord (and, if Landlord is a form of business organization or other form of joint ownership, the members of such organization or ownership) will have absolutely no personal liability for any deficiency or otherwise. This clause will not be deemed to limit or deny any remedies, which Tenant may have in the event of default by Landlord, which do not involve the personal liability of Landlord. The provisions of this Section shall survive the termination of this Lease.

18.06 Waivers. One or more waivers of any covenant, term, or condition of this Lease by either party, or of any act by the other party requiring consent or approval shall not be deemed to waive or render unnecessary consent to or approval of any subsequent similar act.

18.07 Notices. Any notice or communication required or permitted hereunder shall be in writing and (i) personally delivered, (ii) sent by United States registered or certified mail, postage prepaid, return receipt requested, (iii) sent by Federal Express or similar nationally recognized overnight courier service, or (iv) transmitted by electronic mail or facsimile with a hard copy sent within one (1) business day by any of the foregoing means. Such notice shall be deemed to have been given upon the date of actual receipt or delivery (or refusal to accept delivery), as evidenced by the notifying party's receipt of written or electronic confirmation of such delivery or refusal, if received by the party to be notified between the hours of 8 a.m. and 5 p.m. Central time on any business day, with delivery made after such hours to be deemed received on the following business day. For the purposes of notice, the addresses of the parties shall be as set forth on Page 1 of this Lease.

18.08 Amendment. This Lease may not be altered, changed, or amended except by instrument in writing signed by both parties.

18.09 Binding Effect. The terms, provisions, covenants, and conditions contained in this Lease shall apply to, inure to the benefit of, and be binding on the parties and on their respective successors in interest and legal representatives, except as otherwise expressly provided.

18.10 Construction and Enforcement. This Lease shall be governed exclusively by Texas law, and shall be construed and enforced in accordance therewith. Exclusive jurisdiction over any dispute or other legal action taken with respect to this Lease shall lie in Tarrant County, Texas.

18.11 Attorney's Fees. If either party shall be required to employ an attorney to enforce or defend the rights of such party hereunder, the prevailing party shall be entitled to recover reasonable attorney's fees incurred in connection therewith.

18.12 Final Agreement. This Lease contains the complete agreement between the parties hereto and cannot be varied, modified or altered except by the written agreement of the parties hereto. The parties agree that there are no oral agreements, understandings, representations or warranties, which are not expressly set forth herein.

18.13 Holdover. In the event of holding over by Tenant after the expiration or termination of this Lease or extension thereof, the Tenant shall be as a tenant at will and all of the terms and provisions of this Lease shall be applicable during that period, except that Tenant shall pay Landlord as Monthly Base Rent for the period of such holdover period an amount equal to one and one-half (1.5) the current Monthly Base Rent. Tenant agrees to vacate and deliver the Premises to Landlord upon Tenant’s receipt of notice from Landlord to vacate. The Monthly Base Rent payable during the holdover period shall be payable to Landlord on demand. No holding over by Tenant, whether with or without consent of Landlord, shall operate to extend this Lease except as otherwise expressly provided herein.

18.14 No Offset. Tenant will not for any reason withhold or reduce Tenant's required payments of rentals and other charges provided in this Lease, it being agreed that the obligations of Landlord are independent of Tenant's obligations, except as may be otherwise expressly provided.

18.15. Disclaimer. EXCEPT TO THE EXTENT EXPRESSLY PROVIDED IN THIS LEASE, TO THE FULLEST EXTENT ALLOWED BY LAW, LANDLORD DISCLAIMS ALL REPRESENTATIONS AND WARRANTIES TO TENANT OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION REPRESENTATIONS AND WARRANTIES AS TO TITLE, HABITABILITY, SUITABILITY, CONDITION OF THE PREMISES (INCLUDING WITHOUT LIMITATION THE ENVIRONMENTAL CONDITION OF THE PREMISES OR ITS SUITABILITY FOR A PARTICULAR PURPOSE OR COMMERCIAL USE), AND PROVISION OF SERVICES.

18.16. Recording. Tenant will not record this Lease without the prior written consent of Landlord.

18.17 No Security. TENANT BEARS SOLE RESPONSIBILITY FOR THE SECURITY OF THE PREMISES AND ALL PERSONS ON THE PREMISES. LANDLORD HAS NO DUTY TO PROVIDE SECURITY PERSONNEL, SECURITY LIGHTING, OR ANY OTHER FORM OF SECURITY FOR THE PREMISES.

[SIGNATURE PAGE FOLLOWS]